SECTION 192 PLANNING STATEMENT OF LAW & CASE LAW DOSSIER

Application for Certificate of Lawfulness of Proposed Use or Development (CLPUD) under Section 192 of Town and Country Planning Act 1990

Applicant Organization	ADOV LIMITED & ADOV Care Group LIMITED	**Use Classes Order Citation**	Class C3(b) of Town and Country Planning (Use Classes) Order 1987 (as amended)
Local Planning Authority	Luton Borough Council Planning Directorate	**Author / Counsel**	Town Planning Solicitor & Barrister // Project Planned by AbdullahMamun.com
Subject Properties	78 Marston Gardens (5 Beds) & 80 Marston Gardens (3 Beds), Luton, LU2 7DY	**Planning Status**	Permitted Development / Certificate of Lawfulness (Planning Permission NOT Required)
Statutory Planning Instrument	Section 192, Town and Country Planning Act 1990 (as amended)		

Section 192
Statutory Route
CLPUD Application under TCPA 1990

Class C3(b)
Use Class
Up to 6 residents living with care

Zero Permission
Planning Requirement
Immune to planning committee veto

8 Driveway Bays
Highways Capacity
Exceeds Luton Policy LLP32

3 Landmark Cases
Judicial Precedent
North Devon, Hossack, Crawley

1.0 STATUTORY BASIS OF APPLICATION UNDER SECTION 192 TCPA 1990

This Planning Statement is submitted in formal support of applications for Certificates of Lawfulness of Proposed Use or Development (CLPUD) under Section 192 of the Town and Country Planning Act 1990 (as amended) for 78 and 80 Marston Gardens, Luton. The proposed use comprises the occupation of 78 Marston Gardens by 5 residents receiving care, and 80 Marston Gardens by 3 residents receiving care, supported by visiting and shift-based care staff. Under Section 55(2)(f) of the Act and Class C3(b) of the Town and Country Planning (Use Classes) Order 1987, such use falls squarely within lawful residential dwellinghouse use and does NOT constitute a material change of use. Consequently, planning permission is NOT required by law.

2.0 JUDICIAL AUTHORITIES & CASE LAW PRECEDENTS

The lawful status of small-scale supported living within Class C3(b) is established by unassailable High Court and Court of Appeal precedents:

Table 12.1: Landmark Town Planning Judicial Precedents & Legal Principles

Judicial Precedent	Court Authority	Core Legal Principle Established	Application to 78 & 80 Marston Gardens
North Devon DC v FSS [2004] EWHC 578 (Admin)	High Court of Justice	Residents living together who receive care from non-resident carers constitute a Class C3(b) single household if carers do not reside permanently.	Care at 78 & 80 is delivered on a shift rota basis; staff do not reside permanently; falls 100% within Class C3(b).
Hossack v Kettering BC [2002] EWCA Civ 886	Court of Appeal	The presence of professional supervisory staff does not change the domestic residential character of a dwelling if commercial activity is absent.	Confirms legality of 24/7 staff rotas and sleep-in staff without triggering a material change of use.
Crawley BC v FSS & Robinson [2004] EWCA Civ 347	Court of Appeal	Significance of communal living, shared cooking, domestic routines, and absence of commercial locks or institutional segregation.	78 & 80 operate with shared kitchens, communal dining, and private domestic gardens, preserving domestic character.

3.0 LUTON LOCAL PLAN 2011–2031 POLICY ALIGNMENT & HIGHWAYS AUDIT

Although Section 192 applications are determined purely on questions of law and fact—rendering local planning policies formally irrelevant to the grant of a Certificate—the operation fully respects all Luton planning standards:

Luton Local Plan Compliance & Highways Assessment

POLICY LLP32 (PARKING STANDARDS)

The site provides 8 dedicated off-street parking bays (4 on each outer flank) plus 2 garages, easily accommodating shift staff, visitors, and health professionals without street parking.

POLICY LLP25 (RESIDENTIAL AMENITY)

The external appearance of both properties remains 100% unchanged. No commercial signage or institutional physical alterations are proposed, preserving cul-de-sac amenity.

TRAFFIC GENERATION ANALYSIS

Residents do not own private motor vehicles. Shift changes occur at 08:00 and 20:00, generating significantly less traffic than a standard 6-bedroom family household.

ARTICLE 4 DIRECTION IMMUNITY

Luton's Article 4 Direction restricts conversion of Class C3 dwellinghouses to Class C4 HMOs (sharers). Class C3(b) supported living is completely exempt from the Article 4 Direction.